

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3419

By: Strom

AS INTRODUCED

An Act relating to crimes and punishments; amending Section 2, Chapter 336, O.S.L. 2025 (21 O.S. Supp. 2025, Section 365), which relates to the corrupt use of nonpublic information; prohibiting current or former officers, employees, or contractors of a political subdivision from corrupt use of nonpublic information; clarifying that violation shall be grounds for termination from government employment; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 2, Chapter 336, O.S.L. 2025 (21 O.S. Supp. 2025, Section 365), is amended to read as follows:

A. Any current or former officer, employee, or contractor of a state agency or political subdivision who obtains or obtained nonpublic information because of his or her government employment, government office, or contract with a state agency or political subdivision, and who corruptly, as defined by Section 94 of Title 21 of the Oklahoma Statutes:

1. Uses such information for personal gain or benefit;

1 2. Acquires or divests a pecuniary interest in any property,
2 transaction, or enterprise which may be affected by such
3 information;

4 3. Speculates or wagers on the basis of such information;

5 4. Uses such information in a way that would affect any
6 personal pecuniary interest, including an interest held by an
7 immediate family member, or business entity with which the immediate
8 family member is associated;

9 5. Discloses such information to any person, group, entity, or
10 others not entitled to receive such information; or

11 6. Aids another to commit any act set forth in paragraphs 1
12 through 5 of this subsection, shall, upon conviction, be guilty of a
13 felony punishable by a fine not to exceed Ten Thousand Dollars
14 (\$10,000.00), by imprisonment in the custody of the Department of
15 Corrections for a term not to exceed five (5) years, or by both such
16 fine and imprisonment. Any person convicted of violating any
17 provision of this section shall be prohibited from holding any
18 public office in this state and shall be prohibited from entering
19 into any ~~state~~ contract with a state agency or political
20 subdivision.

21 B. Violation of any provision of this section shall be grounds
22 for removal from office or termination from ~~state~~ government
23 employment.

1 C. For purposes of this section, the term "immediate family
2 member" means:
3 1. A spouse;
4 2. A spouse's parents;
5 3. A child by birth or adoption;
6 4. A stepchild;
7 5. A parent;
8 6. A grandparent;
9 7. A grandchild;
10 8. A sibling;
11 9. A spouse's siblings; or
12 10. A spouse of any immediate family member listed in this
13 subsection.

14 SECTION 2. This act shall become effective November 1, 2026.

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